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February 22, 2017					
FEDERAL MARITIME COMMISSION					

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DOCKET NO. 16-17

**CONNIE LANE CHRISTY and
CHRISTY COLLECTION INTERNATIONAL, INC. on behalf of
THE ANNIE GRACE FOUNDATION FOR THE CHILDREN OF BALI, INDONESIA**

v.

AIR 7 SEAS TRANSPORT LOGISTICS INC.

SCHEDULING ORDER

On January 12, 2017, Complainants filed a motion seeking to amend the complaint. On January 24, 2017, Respondent filed an opposition to the motion. On January 25, 2017, the parties were contacted by staff in the Office of Administrative Law Judges to schedule a pre-hearing conference. The pre-hearing conference was held by telephone on February 16, 2017.

To date, Ms. Christy has been representing the Complainants. She indicated that she is considering hiring an attorney. She was advised that if she intends to hire counsel, she should do so immediately. It is expected that if counsel is hired, that person will enter an appearance by the end of this month. Respondent is represented by legal counsel.

At the pre-hearing conference, the parties indicated that they have been working toward settling their claims, with a focus on determining the basis and evidence related to damages. The parties have been working with the Commission's Office of Consumer Affairs and Dispute Resolution (CADRS). It was agreed that preliminary exchange of documents could aid in resolution of the proceeding and will be necessary if the case moves forward. Both parties indicated that they are willing to negotiate a resolution of the proceeding. In an effort to limit costs for the parties, it was agreed that additional time for a settlement conference with a settlement judge would be beneficial. If the parties are not able to resolve the proceeding, then it will move forward on the merits.

Chief Judge Guthridge has agreed to serve as a settlement judge and speak with the parties on March 2, 2017. He will provide additional information, including a conference call number, by email. The parties are advised to be respectful to Chief Judge Guthridge and to each other at all points in the settlement conference. Chief Judge Guthridge will not share with the undersigned the content of the discussions or documents exchanged in the settlement conference. As discussed, it is in the parties' best interest to resolve the proceeding quickly and without incurring additional unnecessary costs.

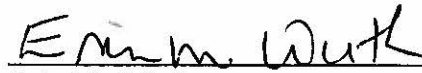
As Complainants are unrepresented, Ms. Christy was provided information about how to access the Commission's docket log and she was encouraged to review prior Commission proceedings. In addition, she was advised that Complainants have the burden of proof and that not all loss of cargo is a violation of the Shipping Act. The parties were also advised that under new rules, the prevailing party may be awarded attorney fees. The parties were given the opportunity to ask questions about the proceeding.

Respondent indicated that there are a number of potential legal issues it may challenge. Thus, it is anticipated that if the settlement discussions are not successful, Respondent will file a motion to dismiss. The currently pending motion to amend the complaint, which did not include a revised complaint, will be held in abeyance. At this point, the complaint filed on November 15, 2016, is the complaint to which Respondent should respond.

It is hereby **ORDERED** that the parties follow this schedule, to which they agreed:

February 24, 2017	Exchange preliminary discovery documents regarding damages
March 2, 2017	Telephone conference with Chief Judge Guthridge
March 16, 2017	Motion for settlement with settlement agreement OR Respondent's response to complaint (motion to dismiss or answer)
March 30, 2017	Complainants' opposition to Respondent's motion to dismiss
April 6, 2017	Respondent's reply to motion to dismiss

This proceeding was initially filed in November of 2016. Limited progress has been made to this point. If the parties are not successful in resolving the dispute, they will be expected to file and respond to discovery and brief the merits of the proceeding without further delay.


Erin M. Wirth
Administrative Law Judge